

DeKalb Superior Court 1

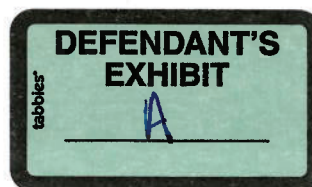
STATE OF INDIANA) IN THE DEKALB SUPERIOR COURT
) SS:
COUNTY OF DEKALB) CAUSE NO. **17D01-2107-CT-000034**

BEVERLY BABBITT,
Plaintiff,
v.
GEMINI TRANSPORT, LLC and
LJUBISA JAKOVLJEVIC,
Defendants.

COMPLAINT FOR DAMAGES

COMES NOW, Plaintiff Beverly Babbitt, by counsel, Jennifer McKibben, and alleges and seeks relief as follows:

1. On October 1, 2020, Plaintiff Beverly Babbitt (hereinafter "Babbitt") was a resident of Dekalb County, Indiana.
2. On October 1, 2020, Defendant Ljubisa Jakovljevic ("Jakovljevic") was a resident of Macomb County, Michigan.
3. On October 1, 2020, Defendant Gemini Transport, LLC (hereinafter "Gemini Transport") was a foreign limited liability company doing business in the State of Indiana.
4. On October 1, 2020, Gemini Transport was a motor carrier – MC 432907 – engaged in the business of transporting goods in interstate commerce.
5. At all relevant times, Jakovljevic was an employee and agent of Gemini Transport.
6. At the time of the collision described below on October 1, 2020, Jakovljevic was acting in the course and scope of his employment and agency for Gemini Transport.



7. On October 1, 2020, Jakovljevic was operating a grey Freightliner semi tractor-trailer (hereinafter "the Semi") owned by Gemini Transport in Auburn, Indiana.

8. On October 1, 2020, Jakovljevic was traveling in the southbound lane of Grandstaff Drive approaching the intersection with 15th Street in Auburn, Indiana.

9. At that time, Babbitt was traveling eastbound on 15th Street in a beige Ford Taurus (hereinafter "the Taurus") at or near the intersection with Grandstaff Drive in Auburn, Indiana.

10. Jakovljevic proceeded through the intersection of Grandstaff Drive and 15th Street and collided with the passenger's side of the Taurus operated by Babbitt, dragging the Taurus under the Semi for over 200 feet.

11. Jakovljevic was negligent and reckless in the operation of the Semi which was a responsible and proximate cause of the collision on October 1, 2020 and the severe and permanent injuries sustained by Babbitt.

12. Jakovljevic was negligent, grossly negligent and reckless in the operation of the Semi by:

- a. choosing not to keep and maintain a proper lookout for other vehicles using the roadway, including Babbitt's Taurus;
- b. choosing not to keep the Semi under control so as to avoid colliding with Babbitt's Taurus;
- c. choosing to enter the intersection of Grandstaff Drive and 15th Street when it was not safe to do so;
- d. choosing not to change, alter, or divert the course of his Semi to avoid a collision with the Taurus operated by Babbitt;

- e. choosing to ignore state and federal laws for the safe operation of the Semi; and
- f. choosing to ignore safety rules for operators of commercial motor vehicles.

13. Gemini Transport is vicariously liable and responsible for the acts of negligence and damages caused by its employee and agent, Jakovljevic, during the course and scope of his employment and agency for Gemini Transport.

14. Gemini Transport was negligent, grossly negligent, and reckless which proximately caused or contributed to the collision of October 1, 2020 and Babbitt's injuries by:

- a. failing to properly select, train, and/or supervise its drivers, including Jakovljevic;
- b. putting and allowing unqualified and reckless drivers on the road including Jakovljevic;
- c. choosing not to adequately screen and test its drivers to monitor and evaluate driver safety orientation, including Jakovljevic;
- d. choosing not to develop, promulgate, adopt, and implement safety policies, procedures, and practices for its drivers, including Jakovljevic;
- e. permitting, allowing and not stopping its drivers from violating rules, regulations, and/or statutes regarding driver records and logs, including Jakovljevic;
- f. failing to provide periodic systematic safety and/or defensive driver training for its drivers, including Jakovljevic;
- g. failing to provide remedial training of its drivers, including Jakovljevic;

- h. entrusting the Semi to Jakovljevic;
- i. choosing not to maintain the Semi operated by Jakovljevic in appropriate mechanical working order; and
- j. any such other negligence or gross negligence and violations of rules, regulations, and statutes as may be shown at the trial of this matter, including Indiana law, CDL training and the Federal Motor Carrier Safety Regulations.

15. As a direct and proximate result of the carelessness, negligence and recklessness of Gemini Transport and Jakovljevic, Babbitt sustained serious and permanent physical injuries, has experienced physical pain and mental anguish, and will continue to experience pain and mental anguish in the future.

16. As a direct and proximate result of Babbitt's injuries, Babbitt has been required to engage the services of health care providers for medical treatment; further, Babbitt will inevitably require medical services in the future as a result of her injuries.

17. As a direct and proximate result of the carelessness, negligence and recklessness of Gemini Transport and Jakovljevic, the activities of Babbitt's daily life have been permanently and adversely affected to her detriment.

18. At all times relevant herein, Gemini Transport and Jakovljevic acted with reckless disregard of the consequences to Babbitt and acted in a wanton, willful and grossly negligent manner, justifying an award of punitive damages to punish and deter such wrongful conduct.

WHEREFORE, Plaintiff Beverly Babbitt prays for judgment against Defendant Gemini Transport and Defendant Jakovljevic, in an amount commensurate with her injuries, for the costs of this action, for punitive damages, pre judgment interest and for all other just and proper relief.

Respectfully submitted,

GLASER & EBBS, LLC

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